

21. S-PR-0014068 In Re the Estate of McClean, Timothy Alan

Missing notice of hearing for petition to administer estate. Missing proof of service of notice of hearing.

Petitioner response and / or court determination is needed as to request to waive bond: petitioner identifies as properties of the estate an income interest from a trust and two out-of-state mineral interests. Petitioner requests full IAEA powers, which requires the value of real property in the estate to be bonded. However, out-of-state real property cannot be administered in domiciliary proceedings and California and generally requires ancillary administration in the state where the real property is located.

Note: missing signed Duties form (DE-147). The clerk cannot issue any letters until the signed Duties form is filed. C.R.C. 7.150.

22. S-PR-0014069 In Re the Estate of Phillips, Patricia Ann

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

Missing relationship of petitioner to decedent (§ 3g(2)(c)).

23. S-PR-0014070 In Re the Estate of Brehm, Peter Frank

Missing sufficient notice of hearing, service of notice of hearing, and publication of notice of hearing for petition to administer estate. Notice of hearing as filed, served, and published, relates only to a July 10 hearing that has been continued by the court, rendering such notice ineffective. Petitioner was notified of the revised hearing date by clerk's notice dated May 19. New notice, service, and publication are needed.

If the court were to excuse further notice, notice remains outstanding to Sean McNabb. The counsel declaration filed March 13 is not a proof of service of notice of hearing.

Missing required allegations at § 5a(3)–(4) (RDP).

Missing proof of subscribing witness(es). Will is not self-proving: witness statement is neither a declaration nor an affidavit.